

Sri Dr Ravikumar S vs Smt Somya S O on 15 March, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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MFA No.6981 of 2014

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 15TH DAY OF MARCH 2023
PRESENT
THE HON'BLE MR JUSTICE ALOK ARADHE
AND
THE HON'BLE MR JUSTICE VIJAYKUMAR A. PATIL
MISCELLANEOUS FIRST APPEAL NO.6981 OF 2014 (FC)

BETWEEN:

SRI DR. RAVIKUMAR S.,
S/O SURENDRA NAIK,
AGE 38 YEARS,
R/O GURUKRUPA,
1ST STAGE, 4TH CROSS,
60 FEET ROAD, VINOBBHANAGARA,
SHIVOMOGA,
SHIVAMOGA DISTRICT-577201.

...APPELLANT

(BY SRI PRASAD B. S., ADV.)

AND:

SMT. SOMYA S.O.
W/O DR. RAVIKUMAR
D/O ONKARAPPA,
AGED 32 YEARS,
R/O #1946/3, RENUKA NILAYA,
5TH MAIN, 15TH CROSS,
VIDYANAGARA,
DAVANAGERE DIST.-577100.

...RESPONDENT

(BY SRI JOSEPH ANTHONY, ADV.)

THIS M.F.A IS FILED UNDER SECTION 19(1) OF FAMILY
COURT ACT, AGAINST THE JUDGMENT AND DECREE DATED
26.09.2014, PASSED IN MC NO.109/2012 ON THE FILE OF THE

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MFA No.6981 of 2014

JUDGE, FAMILY COURT, DAVANGERE, DISMISSING THE
PETITION FILED U/S 13(1) (ia) AND (ib) (iii) OF HINDU
MARRIAGE ACT.

THIS APPEAL HAVING BEEN HEARD AND RESERVED ON
06.03.2023, COMING ON FOR PRONOUNCEMENT OF
JUDGMENT, THIS DAY, VIJAYKUMAR A. PATIL J., DELIVERED
THE FOLLOWING:

JUDGMENT

This appeal under Section 19(1) of the Family Courts Act, 1984 has been filed against the judgment dated 26.09.2014 passed by the Family Court, by which the petition filed by the appellant/husband under Section 13 (1) (ia) (ib) and (iii) of the Hindu Marriage Act, 1955 (for short 'the Act') seeking dissolution of the marriage on the grounds of cruelty, desertion as well as unsoundness of mind, has been dismissed.

2. Facts giving rise to filing of this appeal briefly stated are that appellant/husband and respondent/wife were married as per Hindu Rites and Customs on 13.10.2010 at Bapuji Samudaya Bhavana, Davanagere. After the marriage, the parties stayed together and from out of the wedlock a daughter viz., Lavanya was born on 25.03.2012. The relationship between the appellant/husband and the respondent/wife was not cordial. On 02.10.2011 the appellant/husband filed a petition seeking dissolution of marriage on the ground of physical and mental cruelty, desertion and incurable disease of unsound mind.

3. It is pleaded that after the marriage the appellant/husband and respondent/wife have separately resided in a rented house at Davangere. It is further pleaded that the respondent/wife used to abuse the appellant in filthy language, tease him before relatives and friends, and the respondent/wife has failed to discharge her marital obligations.

4. It is pleaded that the appellant's parents are aged and dependent on their only son. Prior to the marriage they were living along with the appellant/husband and after the marriage the appellant/husband used to visit Shivamogga in order to look after his parents. It is stated that the respondent/wife used to interfere with his work and also torment him stating the appellant/husband has abnormal behaviour and attitude. As it went beyond the tolerable limit, the appellant took the respondent/wife to psychiatrist in the year 2010, and the appellant/husband came to know that respondent/wife is suffering from hypothyroid as well as depressive disorder. It is pleaded that respondent/wife was not aware of disease at the time of the marriage and when treatment was provided she neglected the medications prescribed by the doctor. On the contrary, she continued with her aggressive attitude towards the appellant/husband and his parents.

5. It is averred that when the appellant/husband tried to advise, she threatened him stating that she would commit suicide by consuming tablet, by jumping out of the car running car, setting fire etc., which was all brought to the notice of the respondent's parents. It is also averred that the respondent/wife used to threaten him stating that she would lodge a false complaint before the police as against the appellant/husband and his parents.

6. It is pleaded that the appellant/husband was a surgeon, he could not carry on his profession peacefully because of mental harassment by the respondent/wife which made him to resign the job on 22.08.2011, in Davangere as well as in Shivamoga. It is pleaded that after filing the divorce petition, the respondent/wife has also filed frivolous criminal complaint against his parents, sisters and brother-in-law.

7. The respondent/wife appeared before the Family Court and filed objections. The respondent/wife has specifically denied the allegations and has pleaded that appellant/husband has failed to discharge marital obligations. It is further pleaded that it is the appellant/husband who was suspecting the respondent/wife, and got the first child aborted against her wishes.

8. The Family Court on the basis of the pleadings of the parties recorded evidence. The appellant examined himself as PW1 and marked Exs.P1 to Exs.P19. The respondent/wife examined herself as RW.1 and marked Exs.R1 to Ex.R36. The Family Court on the basis of the evidence adduced by the parties vide judgment dated 26.09.2014 inter alia held that appellant/husband has failed to prove the ground of physical, mental cruelty, desertion and incurable unsoundness of mind, against the respondent/wife, hence dismissed the petition. In the aforesaid factual background, this appeal has been filed.

9. Learned counsel for the appellant/husband submitted that behaviour of the respondent/wife during her stay with the appellant/husband was cruel as she was suffering from hypothyroid leading to unsoundness of mind. It is further submitted that Family Court has failed to properly appreciate the evidence adduced by the appellant/husband, therefore, seeks to set aside judgment and decree passed by the Family Court.

10. Learned counsel for the appellant/husband relies on the following decisions :-

a. V BHAGATH Vs. B. BHAGATH, AIR 1994 SC 710 b. JOYDEEP MAJUMDAR Vs. BHARATHI, AIR 2021 SC c. M UDAYAKUMAR VS. RAJESHWARI MFA No. 10111/2013 There is no dispute with regard to legal proposition canvassed by the learned counsel for the appellant/husband. This Court is required to consider the instant appeal based on the pleading, evidence and material on record.

11. Per contra, learned counsel for the respondent/wife justifies the judgment and decree of the Family Court and submits that allegations of cruelty, unsoundness of mind and desertion are made without any basis. The appellant has failed to prove those grounds before the Family Court by adducing proper evidence and therefore, seeks to dismiss the present appeal.

11. Having considered the submission made by learned counsel for the appellant and on perusal of material on the record, it is pertinent to note that the standard of proof in a case of matrimonial dispute pertaining to cruelty cannot be said to be applicable as is applicable in case of trial in the Code of Criminal Procedure. However, parties to the dispute are required to describe the measure and standard of cruelty and lead cogent evidence to succeed in the plea of dissolution of marriage on the ground of cruelty.

12. In the light of the test for cruelty which has been distinctly laid down by the Hon'ble Supreme Court in the case of N.G. DASTANE V. S. DASTANE, (1975)2 SCC 326 at Para 30 it is held as follows :-

"30.The enquiry therefore has to be whether the conduct charges as cruelty is of such a character as to cause in the mind of the petitioner a reasonable apprehension that it will be harmful or injurious for him to live with the respondent...."

13. In MAYADEVI V. JAGDISH PRASAD, (2007) 3 SCC 136 the Hon'ble Supreme Court has explained "Certain Pitch of Severity" which amounts to cruelty and quarrels in day to day marital life shall not amount to cruelty. In para 9 it is held as follows :-

"9. The Court dealing with the petition for divorce on the ground of cruelty has to bear in mind that the problems before it are those of human beings and the psychological changes in a spouse's conduct have to be borne in mind before disposing of the petition for divorce. However insignificant or trifling, such conduct may cause pain in the mind of another. But before the conduct can be called cruelty, it must touch a certain pitch of severity. It is for the Court to weigh the gravity. It has to be seen whether the conduct was such that no reasonable person would tolerate it. It has to be considered whether the complainant should be called upon to endure as a part of normal human life. Every matrimonial conduct, which may cause annoyance to the other, may not amount to cruelty. Mere trivial irritations, quarrels between spouses, which happen in day-to-day married life, may also not amount to cruelty.

Cruelty in matrimonial life may be of unfounded variety, which can be subtle or brutal. It may be words, gestures or by mere silence, violent or non-violent."

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14. On careful perusal of the oral and documentary evidence placed on record it is evident that both appellant/husband and the respondent/wife are qualified enough to weigh the outcome of their actions, the appellant/husband has not chosen to examine any one to substantiate his stand making the allegations vague. Mere use of filthy language, teasing the appellant/husband in front of friends and family shall not be a ground of cruelty, unless they are proved by valid reasoning. The appellant/ husband deposed that due to harassment by the respondent/wife by filing false cases, he was required to obtain anticipatory bail. It is admitted fact that criminal case is still pending against

the appellant/husband, hence mere filing of a complaint cannot be construed as cruelty. The appellant/husband has placed reliance on the CD conversation as per Ex.P16a. The Family Court has recorded specific finding about the conversation found in the CD and held that nothing can be found out from the conversation recorded in the CD and by such conversation it cannot be said that respondent/wife has caused cruelty

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on the appellant/husband. The Family Court has rightly discarded the evidence Ex.P16a-CD for the reason that appellant/husband has failed to produce the certificate as required under Section 65B (4) of the Indian Evidence Act, 1872.

15. The appellant/husband has pleaded that respondent/wife is suffering from unsoundness of mind. However, the appellant/husband has failed to examine any Doctor to support the said ground. The allegations of unsoundness of mind cannot be accepted only on the basis of pleading, the same is required to be supported by an expert's opinion. In the instant case the appellant/husband has not produced an iota of evidence to prove the ground of unsoundness of mind.

16. It will be useful to refer the decision of KOLLAM CHANDRA SEKHAR V. KOLLAM PADMA LATHA, (2014) 1 SCC 225 the Hon'ble Supreme Court has extensively illustrated the meaning of mental illness at para 22, which reads as follows :-

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"22.....regarding "unsound mind" or "mental disorder" and the application of the same as grounds for dissolution of marriage. This Court cautioned that Section 13 (1) (iii) of the Act does not make a mere existence of a mental disorder of any degree sufficient in law to justify the dissolution of marriage."

17. In the light of the above discussion, we are of the opinion that appellant/husband has made vague allegations against the respondent/wife without justifiable reasoning.

18. The appellant/husband has raised the plea of desertion and on meticulous appreciation of evidence on record, the Family Court has recorded a finding that appellant/husband has failed to prove the ground of desertion. The appellant/husband has not specifically pleaded nor adduced evidence as to when the respondent/wife has left the matrimonial home. The appellant/husband is required to establish the fact that the respondent/wife has voluntarily deserted the appellant/husband without any reason two years prior to

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the filing of the petition. In the absence of any such plea supporting the evidence, we do not find any perversity in the finding recorded by the Family Court, hence the appellant/husband has failed to prove the ground of desertion.

19. In the case of DEBANANDA TAMULI V. KAKUMONI KATAKY, (2022) 5 SCC 459 the Hon'ble Supreme Court has elaborated the factum of separation at para 7 which reads as follows :-

"7. The law consistently laid down by this Court is that desertion means the intentional abandonment of one spouse by the other without the consent of the other and without a reasonable cause. The deserted spouse must prove that there is a factum of separation and there is an intention on the part of deserting spouse to bring the cohabitation to a permanent end. In other words, there should be animus deserendi on the part of the deserting spouse. There must be an absence of consent on the part of the deserted spouse and the conduct of the deserted spouse should not give a reasonable cause to the

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deserting spouse to leave the matrimonial home."

20. The Family Court on meticulous appreciation of evidence on record has recorded a finding that the appellant/husband has failed to prove the grounds for dissolution of marriage on the grounds of cruelty, unsoundness of mind and desertion. The aforesaid finding does not suffer from any infirmity warranting interference in the present appeal.

21. For the aforementioned reasons, we do not find any merit in this appeal, the same is hereby dismissed.

No order as to costs.

Sd/-

JUDGE Sd/-

JUDGE NG CT: DMN